

HOUSE No. 1823

The Commonwealth of Massachusetts

PRESENTED BY:

Kathleen R. LaNatra and Michelle L. Badger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act increasing penalties for hit and runs with recreational vehicles in the Commonwealth to be known as the James Ward Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>1/15/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/15/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/5/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/19/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/7/2025</i>

HOUSE No. 1823

By Representatives LaNatra of Kingston and Badger of Plymouth, a petition (accompanied by bill, House, No. 1823) of Kathleen R. LaNatra, Michelle L. Badger and others relative to increasing penalties for hit and run with a recreational vehicle. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing penalties for hit and runs with recreational vehicles in the Commonwealth to be known as the James Ward Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 26B of chapter 90B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in lines 17 -18, the words “shall be punished
3 by a fine of not less than \$500 nor more than \$1,000” and inserting in place thereof the following
4 words:- person, not resulting in the death of another person, shall be punished by imprisonment
5 in a jail or house of correction for not more than 1 year or by a fine of not less than \$500 nor
6 more than \$1,000, or by both such fine and imprisonment.

7 SECTION 2. Said section 26B of said chapter 90B, as so appearing, is hereby further
8 amended by inserting, after subsection (c), the following subsection:-

9 (d) Whoever operates a snow vehicle or a recreation vehicle and, without stopping and
10 making known theirs name, address and the registration number of his snow vehicle or recreation
11 vehicle, leaves the scene after knowingly colliding with or otherwise causing bodily injury to

12 another person shall, if the injuries result in the death of another person, be punished by
13 imprisonment in a jail or house of correction for not more than 2 1/2 years or by a fine of not
14 more than \$5,000 or by both such fine and imprisonment.

15 SECTION 3. Said section 26B of said chapter 90B, as so appearing, is hereby further
16 amended by striking out, in line 19, the word “(d)” and inserting in place thereof the following
17 word:- (e).

18 SECTION 4. Said section 26B of said chapter 90B, as so appearing, is hereby further
19 amended by striking out, in line 29, the word “(e)” and inserting in place thereof the following
20 word:- (f).